

PR-25-000725 In the Matter of MOSS 2001 REVOCABLE TRUST – Petitioner’s Motion to Compel Further Responses and Production of Documents from Aaron Moss – DENIED.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: For the reasons set forth below, the motion is DENIED in its entirety. Merits The motion was directed to the adequacy of Respondent's responses to Requests for Production Nos. 16 through 23. After the motion was filed, Respondent served verified supplemental responses on July 29, 2026, and produced additional responsive documents, including a formal accounting for the Remus D. Moss Irrevocable Trust, additional bank statements, and the promissory note identified in the supplemental responses. The supplemental responses state the results of Respondent's further diligent search and reasonable inquiry, identify the responsive documents located and produced, and state that no responsive documents are being withheld on the basis of attorney-client privilege or attorney work product. To the extent Petitioner challenges the adequacy of Respondent's privilege log with respect to documents allegedly withheld in response to other requests for production, those requests are not before the Court. The separate statement addresses only Requests for Production Nos. 16 through 23, and Respondent's supplemental responses expressly state that no documents responsive to those requests are being withheld on privilege grounds. The Court therefore concludes that the supplemental responses have substantially addressed the deficiencies identified in the motion and that no further responses are presently required. Request for Sanctions The Court finds that Petitioner acted with substantial justification in bringing the motion. Significant responsive materials, including the formal accounting, additional bank statements, and the promissory note, were not produced until after the motion was filed. The motion was therefore not without merit when filed. Nevertheless, because Respondent served verified supplemental responses and produced additional responsive documents before the hearing, and because the Court finds the supplemental responses have substantially resolved the issues raised by the motion, the Court declines to award monetary sanctions. Each side shall bear its own fees and costs associated with the motion. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

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Request for Sanctions

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